

"For the first time in this country, sexual harassment has been acknowledged as a human rights violation. The point of these guidelines is not to criminalise your employer but to bring an attitudinal change"

—NAINA KAPUR, *Lead counsel for* Vishaka & Ors, *to* INDIA TODAY, *Mar. '96*



SPECIAL REPORTS

RAJASTHAN

The Second Sex Awakens

The winds of change are blowing through the minds of many rural women as they begin to challenge male oppression and cruelty

FROM THE ARCHIVES
Oct. 31, 1992

Special Report **The Second Sex Awakens**

Gaindi, of Gover village in Jaipur district, couldn't understand what was wrong with child marriages. It was the done thing in Rajasthan. Gajri Bai of Bilara in Jodhpur had not batted an eyelid when her neighbour Kamla's husband, had thrown her and her two sons out to live with another woman. "We can hardly argue with our men," was the refrain. All this changed after they became saathins.

–Harinder Baweja

STARTING A CONVERSATION

- **Paved the way for the 2013 Sexual Harassment of Women at Workplace (Prevention, Prohibition, and Redressal) Act**
- **Brought the issue of sexual harassment at the workplace out of the closet, encouraging women to call out inappropriate behaviour without fear of reprisal**
- **Encouraged employers to set up complaints mechanism and women to use such a mechanism for redressal**
- **Was a precursor to the MeToo Movement, where women came forward to share experiences of workplace harassment**

to a medical examination, and surrendering her soiled lehenga as evidence when she had nothing else to cover herself with except her husband's blood-stained dhoti.

"I didn't want to become the Bhanwari Devi I became," she confessed in later media interviews. But she had little choice. Bhanwari's fight soon became the fight of women across the country, incensed at how the system worked to defeat her at every step. Even as the criminal case went on, four women's organisations—Vishaka and Women's Rehabilitation Group from Rajasthan, Jagori and Kali for Women from Delhi—filed a public interest litigation in the country's Supreme Court under the collective platform of Vishaka, with Naina Kapur of Sakshi acting as lead counsel. *Vishaka & Ors vs State of Rajasthan & Ors*, as the landmark case came to be called, gave India the first guidelines to deal with sexual harassment at the workplace, taking their name from the platform that fought for them: Vishaka.

The judgment, delivered by a three-judge bench headed by then CJI J.S. Verma, was pioneering in that it recognised sexual harassment at the workplace as an offence in its own right while highlighting the legislative and penal vacuum for the disposal of such cases. Guided by the 1979 UN Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), which advocates equal rights for women and girls, it held sexual harassment at the workplace as a violation of a woman's fundamental rights to life, liberty and equality as well as of their right to work. Stressing the need for an alternative redressal mechanism, it made it incumbent upon employers to ensure the safety of women at the workplace, clearly defined what constituted 'sexual harassment', laid down the preventive and penal steps to deal with such instances while mandating the establishment of a complaints mechanism at organisations. The guidelines were made legally binding and enforceable until suitable legislation was enacted in their place.

It would take another 16 years for that legislation to come into force. The Sexual Harassment of Women at Workplace (Prevention, Prohibition, and Redressal) Act, 2013, built upon the Vishaka Guidelines of 1997. And what of the woman whose ordeal inspired them? In the 30 years since that nightmare, multiple recognitions have come Bhanwari's way. But not justice. ■

>400
CASES

No. of incidents of sexual harassment at the workplace that have been reported every year since 2018, per NCRB data

DID YOU KNOW?

Though her case paved the way for the Vishaka Guidelines, Bhanwari, now in her 70s, is yet to get justice